

MEMORANDUM

20.06.2025

PART 12 DISCIPLINE AND PROCEDURES

Rules amendments applying on **20.06.2025**

Chapter II GENERAL SECTION

Obligation to cooperate

- 12.2.013** All individuals who are subject to these regulations have the obligation to cooperate with any and all requests for information and/or documentation and/or material by the UCI or the Disciplinary Commission.

A failure of this obligation to cooperate shall constitute an infringement.

Any attempt to obstruct, delay, or hinder investigations or ongoing proceedings, including but not limited to providing false or misleading information, withholding relevant information, refusing to comply with legitimate requests, or engaging in any conduct that disrupts the process, shall also constitute an infringement.

(article added on 20.06.25)

Investigations

- 12.2.014** The UCI, at its sole discretion and initiative, may conduct investigations ex-officio into potential infringements of the UCI Regulations.

For serious infringements, including but not limited to breaches of articles 12.4.003 and 12.4.003 bis, the UCI may exercise enhanced investigative powers, as outlined below, in order to protect the integrity of cycling and to effectively address the severity of the infringement.

In exercising these powers, the UCI shall consider all relevant circumstances, including but not limited to the gravity of the infringement, the urgency of the matter, the severity of potential sanctions, and the possibility of establishing the infringement using less intrusive methods of investigation, ensuring that the application of these powers is both proportional and necessary for the investigation at hand.

These powers may include, but are not limited to, the following actions:

- a) attend an interview before the UCI, or to answer any question, or to provide a written statement setting out their knowledge of any relevant facts and circumstances;
- b) provide (or procure to the best of their ability the provision by any third party) for inspection, copying and/or downloading any records or file in hardcopy or electronic format, that the UCI reasonably believes may contain relevant information (such as itemised telephone bills, bank statements, ledgers, notes, files, correspondence, emails, messages, servers);
- c) provide (or procure to the best of their ability the provision by any third party) for inspection, copying and/or downloading any electronic storage device in which

the UCI reasonably believes relevant information may be stored (such as cloud-based servers, computers, hard drives, tapes, disks, mobile telephones, laptop computers, tablets and other mobile storage devices);

- d) provide full and unlimited access to their premises for the purpose of conducting unannounced inspections, securing information, records, articles, material or other things that are the subject of a request;
- e) provide passwords, login credentials and other identifying information required to access electronically stored records that are the subject of a request.

(article added on 20.06.25)

Confidentiality

- 12.2.015** Any information, record, article or material provided to the UCI under this provision will be kept confidential except when it becomes necessary to disclose such information, record, article or thing to pursue the investigation of and/or to bring, or as part of, proceedings relating to a violation of the UCI Regulations, or when such information, record, article or thing is reported to administrative, professional or judicial authorities pursuant to an investigation or prosecution of non-sporting laws or regulations, or is otherwise required by law.

(article added on 20.06.25)

Suspended sentence

- 12.2.013~~6~~** The Disciplinary Commission may decide to suspend the execution of all or part of the above-mentioned sanctions and set out, at its discretion, the conditions for such suspended sentence, which may include:
- the absence of violations of the UCI Regulations for a defined period of time;
 - taking part in training or educations programmes or other courses;
 - making commitments or undertaking specific actions.

(text modified on 2.02.24)

Chapter II INFRINGEMENTS

Technological fraud

(numbering of section modified on 20.06.25)

- 12.4.003** Any person or entity subject to this Part, who uses or intends to use unauthorised, fraudulent or deceptive technological devices, systems, methods, or other equipment to assist and/or facilitate the propulsion of a bicycle in a manner contrary to article 1.3.010, or engages in any related actions such as providing, requesting, receiving, or accepting such equipment or components with the intent of their use in an event, shall be considered to have committed technological fraud.

(text modified on 20.06.25)

- 12.4.003
bis** Technological fraud is an infringement of article 1.3.010 that is subject to a disciplinary sanction.

Technological fraud occurs in the following circumstances:

- a) the presence, ~~within the scope or fringes of~~ **at any location related to** a cycling event, of a bicycle that does not comply with the provisions of article 1.3.010 **related to propulsion**;

- b) the use by a rider, ~~within the scope or fringes of~~ at any location related to a cycling event, of a bicycle that does not comply with the provisions of article 1.3.010 related to propulsion;
- c) any act, communication, commission or omission aimed at providing equipment or components that do not comply with the provisions of article 1.3.010 for their use in an event, as well as any act related to such provision of equipment or components, including without being limited to requesting, receiving or accepting them, directly or indirectly, or any act related to dissimulating, fitting or preparing such equipment of components.

(text modified on 20.06.25)

12.4.003 All riders and teams, or other entities that a rider may represent (in particular National
ter Federations at races contested by national teams), are responsible for ensuring that all their bicycles comply with the provisions of article 1.3.010 at all times.

The presence ~~and/or use of equipment a bicycle~~ that does not comply with the provisions of article 1.3.010 ~~in breach of article 12.4.003bis, letters a) or b), within the scope or fringes a cycling event~~ shall constitute technological fraud by the rider and the team, or other entity the rider represents, irrespective of whether or not the bicycle has been used during the event.

Technological fraud is ~~not~~ subject to a statute of limitation ~~of 10 years from the date of the offence~~.

(text modified on 20.06.25)